

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1263

By: Hays

AS INTRODUCED

An Act relating to wind energy facilities; requiring the Oklahoma Water Resources Board conduct certain study; detailing study requirements; requiring certain collaboration; requiring report be submitted by certain date; amending 17 O.S. 2021, Section 160.20, as amended by Section 21, Chapter 126, O.S.L. 2023 (17 O.S. Supp. 2024, Section 160.20), which relates to setback requirements; modifying date; requiring setback from residential housing and certain lakes; requiring greater setback distance for towers exceeding a certain height; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1021.23 of Title 82, unless there is created a duplication in numbering, reads as follows:

A. The Oklahoma Water Resources Board shall conduct a detailed study to assess the effects of the placement of wind turbine footings on the state's aquifers and groundwater resources.

B. The study shall include, but shall not be limited to:

1 1. Analysis of the physical impact of wind turbine
2 construction, including the placement of footings, on aquifer
3 integrity;

4 2. Assessment of potential changes in groundwater flow,
5 availability, and quality;

6 3. Evaluation of cumulative impacts in areas with high
7 concentrations of wind turbines; and

8 4. Recommendations for mitigating any identified adverse
9 effects.

10 C. The Board shall collaborate with relevant state and federal
11 agencies, academic institutions, and stakeholders, including
12 representatives from the wind energy industry, agricultural sector,
13 and environmental organizations, to ensure the study is
14 comprehensive and inclusive.

15 D. The Board shall submit a report detailing its findings and
16 recommendations to the Governor, the Speaker of the Oklahoma House
17 of Representatives, and the President Pro Tempore of the Oklahoma
18 State Senate no later than December 31, 2026.

19 SECTION 2. AMENDATORY 17 O.S. 2021, Section 160.20, as
20 amended by Section 21, Chapter 126, O.S.L. 2023 (17 O.S. Supp. 2024,
21 Section 160.20), is amended to read as follows:

22 Section 160.20. A. 1. After ~~August 21, 2015~~ November 1, 2025,
23 no wind energy facility may be constructed if the base of any tower
24 is located at a distance of less than:

1 ~~1. One~~

2 a. one and one-half (1 1/2) nautical miles from the
3 center line of any runway located on:

4 ~~a.~~

5 (1) a public-use airport as defined in Section 120.2
6 of Title 3 of the Oklahoma Statutes, or

7 ~~b.~~

8 (2) an airport owned by a municipality~~+,~~

9 ~~2. One~~

10 b. one and one-half (1 1/2) nautical miles from any
11 public school which is a part of a public school
12 district~~+-or,~~

13 ~~3. One~~

14 c. one and one-half (1 1/2) nautical miles from a
15 hospital,

16 d. one and one-half (1 1/2) nautical miles from any
17 residential home, or

18 e. forty (40) nautical miles from any lake with a normal
19 level surface area that is in excess of ten thousand
20 (10,000) surface acres.

21 2. For any wind turbine tower that exceeds five hundred (500)
22 feet in height, the setback distance specified in subparagraphs a,
23 b, c, and d of paragraph 1 on this subsection shall be three (3)
24 nautical miles.

1 B. Attestation of compliance with the setback requirements in
2 this section shall be included in any reports required by the
3 Corporation Commission. Stakeholder and landowner disputes arising
4 under subsection A of this section shall fall under the exclusive
5 jurisdiction of the district courts. The Corporation Commission may
6 seek enforcement of the submission and attestation requirements of
7 this subsection and subsection C of this section through its
8 administrative court system.

9 C. After April 3, 2018, construction or operation of a proposed
10 individual wind turbine or any other individual structure requiring
11 a Federal Aviation Administration (FAA) Form 7460-1 that is part of
12 a wind energy facility shall not encroach upon or otherwise have a
13 significant adverse impact on the mission, training or operations of
14 any military installation or branch of military as determined by the
15 Military Aviation and Installation Assurance Siting Clearinghouse
16 (Clearinghouse) and the FAA. Areas of impact include, but are not
17 limited to, military training routes, drop zones, approaches to
18 runways and bombing ranges. No individual wind turbine or any other
19 individual structure that requires a FAA 7460-1 form that is part of
20 a wind energy facility may be constructed or expanded unless there
21 is an active Determination of No Hazard from the FAA and adverse
22 impacts to the United States Department of Defense, pursuant to
23 Title 32 of the Code of Federal Regulations, Section 211.6, have
24 been resolved as evidenced by documentation from the Clearinghouse

1 for the individual wind turbine or other individual structure. The
2 Mission Compatibility Certification Letter or successor form may
3 serve as such evidence of adverse impacts being resolved with the
4 Department of Defense or successor agency.

5 1. The Determination of No Hazard and documentation of the
6 resolution of adverse impacts to the Department of Defense shall be
7 filed with the Corporation Commission and the Oklahoma Department of
8 Aerospace and Aeronautics.

9 2. The requirements established by this subsection shall not
10 prohibit the construction of an individual wind turbine or any other
11 individual structure requiring a FAA 7460-1 form that is part of a
12 wind energy facility if that individual wind turbine or other
13 individual structure has received a Determination of No Hazard or
14 mitigation plan on or before April 3, 2018.

15 3. The Corporation Commission is authorized to promulgate rules
16 and regulations for the implementation of the provisions of this
17 section and Section 160.21 of this title.

18 D. If an owner of a wind energy facility fails to submit an
19 active Determination of No Hazard and documentation that adverse
20 impacts to the Department of Defense have been resolved by the
21 Clearinghouse for the individual wind turbine or other individual
22 structure prior to the start of construction, the owner shall be
23 subject to an administrative penalty not to exceed One Thousand Five
24 Hundred Dollars (\$1,500.00) per day, per violation from the

1 Corporation Commission as provided by law. In addition,
2 stakeholders, including, but not limited to, the Corporation
3 Commission or the Oklahoma Department of Aerospace and Aeronautics
4 may institute an action in any court of general jurisdiction to
5 prevent, restrain, correct or abate any violation of subsection C of
6 this section other than Corporation Commission actions related to
7 submissions or attestations.

8 SECTION 3. This act shall become effective November 1, 2025.

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